

UPSC GS-II POLITY

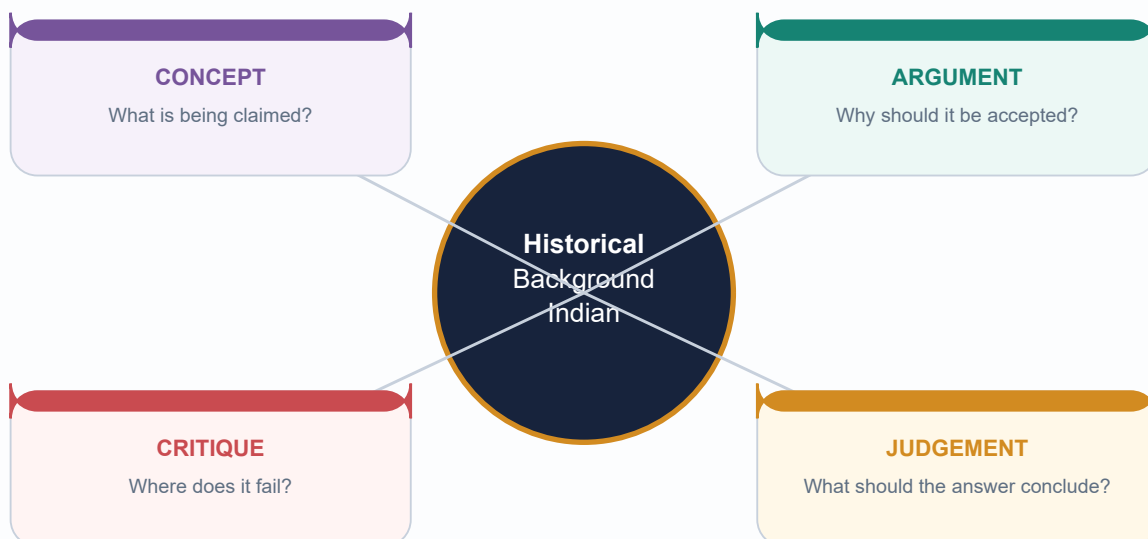
Historical Background of the Indian Constitution

Integrated Basic + Advanced Course

12 deep-learning modules | Company Rule to the Republic

Visual timelines, institutional maps, comparisons, UPSC traps and Mains frameworks

Prepared from the verified Polity knowledge base and the completed guided session



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. From Trading Company to Territorial Power

GS-I / GS-II
Polity -
Constitutional
History

NEWS TRIGGER

Modern debates on decolonising laws and institutions make it necessary to understand how a private corporation first acquired fiscal, military and governmental authority.

INTRO & ORIGIN

The East India Company entered Asian trade under a royal charter issued in 1600. It did not initially possess territorial sovereignty in India. Its transformation occurred through commercial privileges, military victories, political influence and, finally, control over public revenue.

The key analytical distinction is between arrival as a trader and emergence as a territorial power. Plassey created political leverage, Buxar confirmed military superiority, and the Diwani grant supplied the fiscal base of government.

TIMELINE

1600 — Royal charter creates the East India Company.

1757 — Battle of Plassey establishes decisive influence in Bengal.

1764 — Battle of Buxar confirms Company military supremacy.

1765 — Diwani of Bengal, Bihar and Orissa granted to the Company.

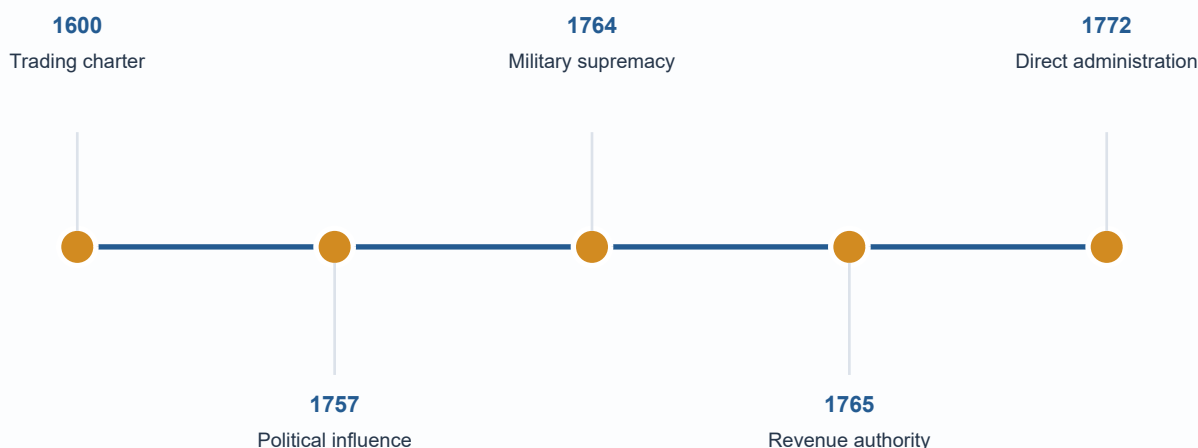
1772 — Warren Hastings ends Bengal's Dual Government.

WHY DIWANI WAS THE TURNING POINT

Revenue converts coercive power into durable government

Army Revenue financed troops and territorial expansion.	Administration Fiscal control supported a permanent bureaucracy.
Civil Justice Diwani included civil and revenue authority.	Accountability Crisis A private company now exercised public power.

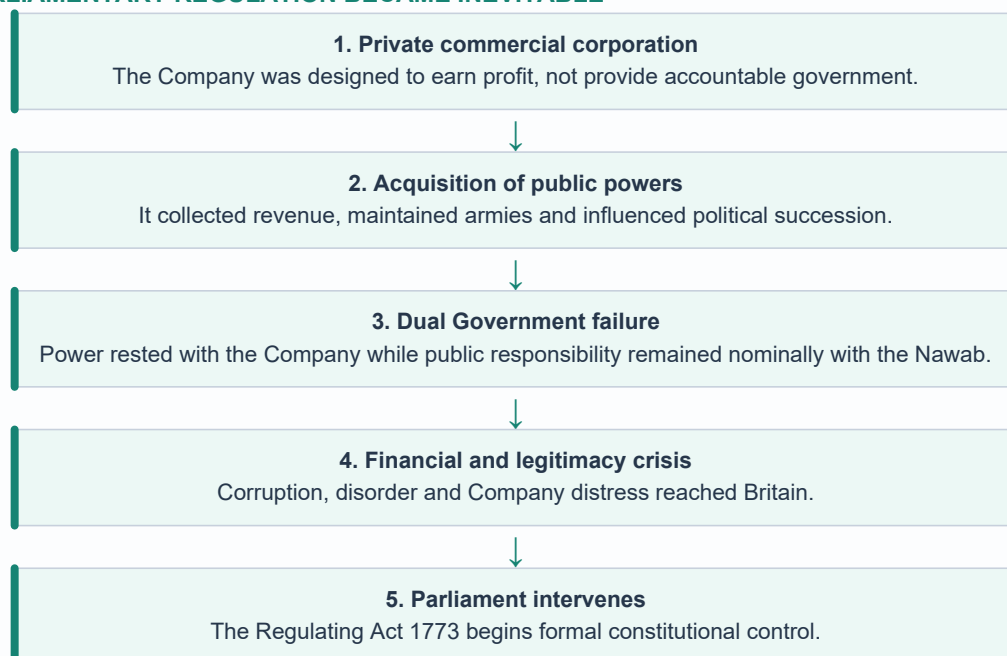
COMMERCIAL POWER BECOMES TERRITORIAL AUTHORITY



KEY DATA

Event	Immediate result	Constitutional significance
Plassey, 1757	Political influence over Bengal	Company intervenes in succession and government
Buxar, 1764	Military defeat of regional and imperial forces	Company becomes the dominant coercive power
Diwani, 1765	Revenue and civil authority	Company becomes a territorial-fiscal power
Dual Government	Company holds revenue; Nawab bears formal responsibility	Authority and accountability are separated

WHY PARLIAMENTARY REGULATION BECAME INEVITABLE



STATIC THEORY

- A territorial state requires coercive capacity, fiscal extraction and administrative institutions; the Company gradually acquired all three.
- Plassey should be treated as a political turning point, while Buxar and Diwani created a firmer military-fiscal foundation.
- Bengal's Dual Government meant revenue without responsibility for the Company and responsibility without resources for the Nawab.
- The constitutional problem was not merely corruption. It was the exercise of sovereign functions by a private corporation.
- The later British constitutional Acts can be read as repeated attempts to decide who should supervise, finance and legitimise this corporate state.

MEMORY HOOK

PLASSEY = influence | BUXAR = supremacy | DIWANI = revenue | 1773 = regulation

MUST-KNOW FACTS

1. The East India Company received its royal charter in 1600.
2. Diwani was granted in 1765 over Bengal, Bihar and Orissa.
3. Warren Hastings abolished Bengal's Dual Government in 1772.
4. Crown Rule did not begin with Diwani; it began in 1858.

UPSC TRAPS

WRONG: The Company became a territorial power merely by arriving in 1600.

CORRECT: It arrived as a trader and became a territorial-fiscal power after eighteenth-century political and revenue gains.

WRONG: Plassey directly granted Diwani rights.

CORRECT: Diwani followed Buxar and was granted in 1765.

WRONG: Dual Government meant joint government by Company and Crown.

CORRECT: It divided real fiscal power and nominal administrative responsibility between Company and Nawab.

MAINS ANGLE

Use the Company transition to show that colonial constitutionalism began as a response to the accountability problem created when private commercial power acquired sovereign functions.

STUDY LINK

Modern History -> Company expansion | Polity
-> Historical Background -> Regulating Act

HIGH**2. Parliamentary Regulation: 1773-1786**

GS-II Polity -
Early
Constitutional
Control

NEWS TRIGGER

Questions of regulatory capture and corporate accountability echo the eighteenth-century problem of supervising a commercially powerful body that also exercised governmental authority.

INTRO & ORIGIN

The Regulating Act 1773 was Parliament's first major intervention in Company government. The Settlement Act 1781 repaired its jurisdictional defects, Pitt's India Act 1784 established effective political supervision, and the 1786 measure strengthened executive leadership.

The sequence is best understood as regulation, jurisdictional clarification, political control and executive consolidation.

TIMELINE

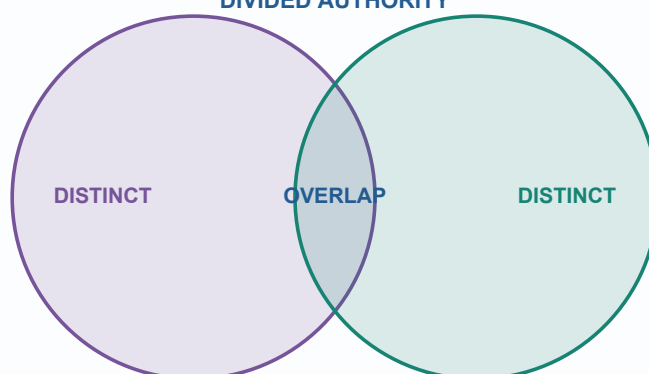
1773 — Regulating Act creates Governor-General of Bengal and Supreme Court framework.

1774 — Supreme Court begins functioning at Calcutta.

1781 — Settlement Act clarifies jurisdiction and protects official acts.

1784 — Pitt's India Act creates the Board of Control.

1786 — Governor-General gains override power and may be Commander-in-Chief.

TWO MEANINGS OF DOUBLE GOVERNMENT**Bengal Dual Government****DIVIDED AUTHORITY****Pitt's Dual Control****Bengal Dual Government**

- 1765-72
- Company revenue
- Nawab formal administration

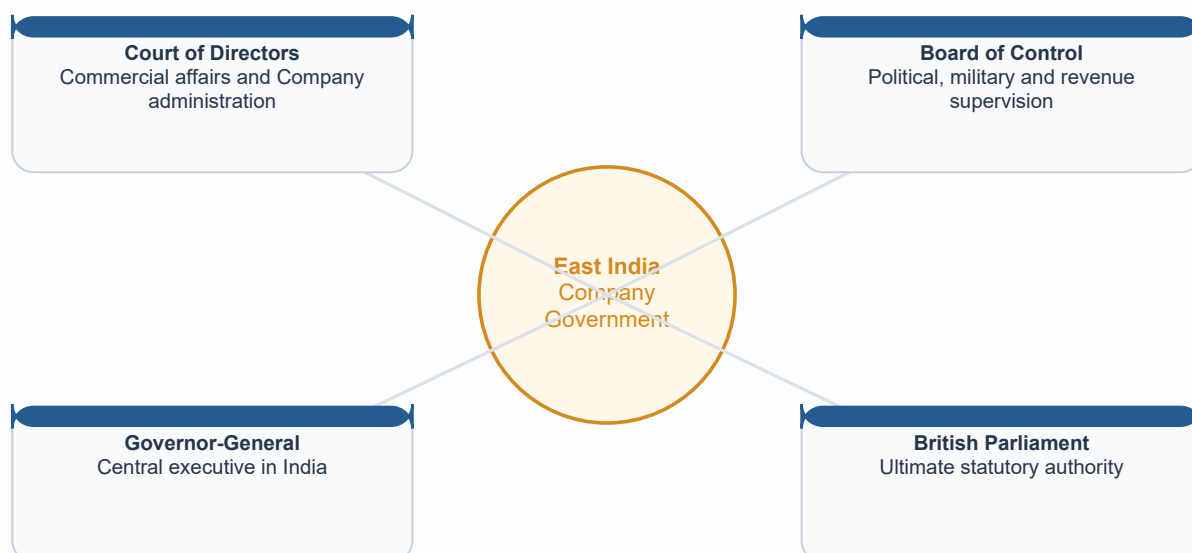
DIVIDED AUTHORITY

- Power divided between institutions
- Risk of blurred accountability

Pitt's Dual Control

- From 1784
- Court of Directors
- Board of Control

The expressions sound similar but refer to different institutions and periods.

THE PITT'S INDIA ACT CONTROL STRUCTURE

KEY DATA

Law	Institutional change	Analytical purpose
Regulating Act 1773	GG of Bengal, four-member council, Supreme Court framework	Initial parliamentary regulation and centralisation
Settlement Act 1781	Revenue and official acts clarified	Reduce executive-judicial conflict
Pitt's India Act 1784	Court of Directors plus Board of Control	Separate commercial management from political supervision
Act of 1786	Governor-General may override council	Strengthen executive coordination

STATIC THEORY

- The Regulating Act began administrative centralisation by making Bombay and Madras subordinate to Bengal in specified matters.
- It created the office of Governor-General of Bengal, not Governor-General of India.
- The Supreme Court's unclear jurisdiction generated conflict with revenue and executive administration.
- The Settlement Act recognised Hindu and Muslim personal law in relevant disputes and excluded specified revenue matters.
- Pitt's India Act distinguished the Company's commercial and political functions.
- The Board of Control represented British governmental oversight, while the Court of Directors continued Company management.
- The phrase 'British possessions in India' signalled that imperial sovereignty stood behind Company administration.

MEMORY HOOK

1773 REGULATE | 1781 REPAIR | 1784 CONTROL | 1786 OVERRIDE

MUST-KNOW FACTS

1. Warren Hastings was the first Governor-General of Bengal.
2. The Calcutta Supreme Court had one Chief Justice and three puisne judges.
3. Sir Elijah Impey was the first Chief Justice.
4. Pitt's India Act created the Board of Control.

UPSC TRAPS

WRONG: The Regulating Act created the Governor-General of India.

CORRECT: It created the Governor-General of Bengal; the all-India office came in 1833.

WRONG: The Supreme Court began functioning in 1773.

CORRECT: The Act provided for it in 1773; it was established in 1774.

WRONG: The Board of Control managed trade.

CORRECT: It supervised political affairs; the Court of Directors retained commercial management.

MAINS ANGLE

Present the Acts as early attempts to separate corporate management, political supervision and judicial authority, while noting that democratic accountability remained absent.

STUDY LINK

Polity -> Executive accountability |
Governance -> Regulatory design

HIGH

3. Charter Acts: Commerce to Administration

GS-I / GS-II
Polity - Company
Rule

NEWS TRIGGER

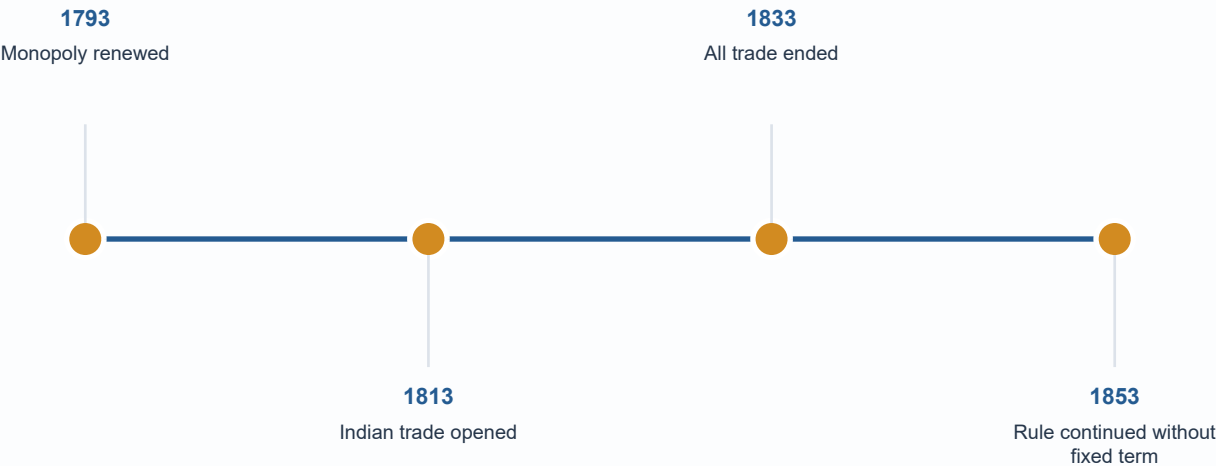
Civil-service recruitment and monopoly regulation remain useful contemporary parallels for the Charter Acts' gradual movement from patronage and commercial privilege to competition and public administration.

INTRO & ORIGIN

The Charter Acts periodically renewed Company authority. Across 1793, 1813, 1833 and 1853, they dismantled the trade monopoly, centralised legislation, separated legislative work and introduced competitive civil-service recruitment.

The deepest pattern is the conversion of the Company from a protected commercial corporation into a purely administrative agency whose continuation depended entirely upon Parliament.

THE COMPANY'S COMMERCIAL EXIT



KEY DATA

Act	Trade	Government	Civil-service / legislative change
1793	Monopoly renewed for 20 years	Existing control continued	Patronage remains
1813	Indian monopoly ends; tea and China retained	Crown sovereignty asserted	Education grant and missionary access
1833	Commercial activity ends completely	GG of India; legislative centralisation	Non-discrimination principle and Law Member
1853	Company purely administrative	No fixed renewal term	Open competition and legislative-executive separation

CIVIL-SERVICE EVOLUTION



STATIC THEORY

- The 1813 Act opened Indian trade to other British merchants but retained Company monopolies in tea and China trade.
- It marked an early state commitment to educational expenditure, though the content of education remained contested.
- The 1833 Act created the Governor-General of India and deprived Bombay and Madras of legislative powers.
- Lord William Bentinck was the first Governor-General of India.
- The 1833 Act converted the Company into a purely administrative body and supported systematic legal codification.
- Macaulay became the first Law Member and later chaired the first Law Commission.
- The 1853 Act added legislative councillors and created a proto-legislative body sometimes described as a mini-Parliament.
- Open competition was formally available to Indians but practical barriers such as London-based examinations limited access.

MEMORY HOOK

1813 PARTIAL TRADE END | 1833 TOTAL TRADE END | 1853 OPEN COMPETITION

MUST-KNOW FACTS

1. The 1813 Act retained tea and China monopolies.
2. The 1833 Act created the Governor-General of India.
3. The 1853 Act was the last Charter Act.
4. The Macaulay Committee on civil services followed in 1854.

UPSC TRAPS

- WRONG:** The 1813 Act ended every Company monopoly.
- CORRECT:** Tea and China trade remained until 1833.
- WRONG:** The 1833 Act effectively created open competitive recruitment.
- CORRECT:** It announced a principle; the operative competition framework is associated with 1853.
- WRONG:** The 1853 Act abolished Company government.
- CORRECT:** Company government ended in 1858.

MAINS ANGLE

Use the Charter Acts to demonstrate how economic liberalisation, administrative centralisation, legal codification and bureaucratic professionalisation developed together.

STUDY LINK

Economy -> Monopoly and competition |
Governance -> Civil-service recruitment

HIGH

4. Crown Rule and the 1858 Settlement

GS-I / GS-II

Polity - Crown
Administration

NEWS TRIGGER

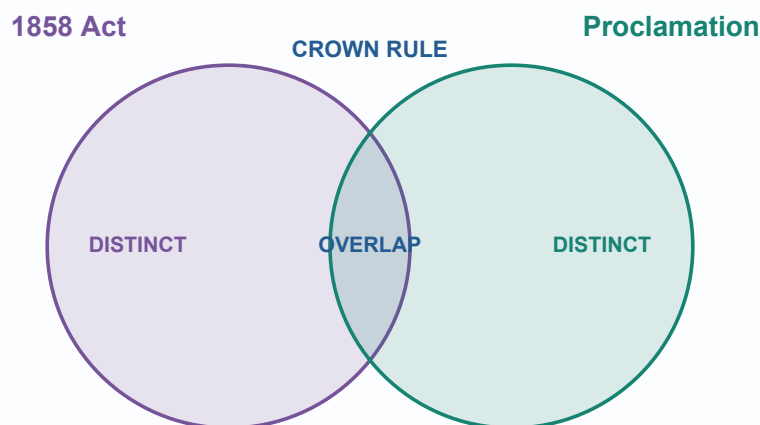
Current discussion of administrative centralisation and civil-service accountability can be traced to the highly centralised Crown structure created after the Revolt of 1857.

INTRO & ORIGIN

The Government of India Act 1858 transferred government from the Company to the Crown. It created the Secretary of State for India, abolished Pitt's dual-control machinery and added the title of Viceroy to the Governor-General.

The Revolt of 1857 was treated by Britain as proof that Company government had failed. The response was direct imperial control and conciliation, not representative self-government.

ACT OF 1858 AND QUEEN'S PROCLAMATION



1858 Act

- Company government transferred
- Secretary of State created
- Dual control abolished

CROWN RULE

- Response to the Revolt
- New imperial settlement

Proclamation

- Religious non-interference
- Princes reassured
- Employment assurances

Institutional restructuring and policy assurances came through distinct instruments.

KEY DATA

Before 1858	After 1858	Meaning
Company Rule	Crown Rule	Agency changed, colonial character continued
Board of Control + Court of Directors	Secretary of State	Unified imperial supervision
Governor-General	Governor-General and Viceroy	Administrative head plus Crown representative
Annexationist insecurity	Conciliatory promises to princes	Princely states become pillars of imperial stability

ADMINISTRATIVE CHAIN AFTER 1858**STATIC THEORY**

- Lord Canning was the last Company-era Governor-General and the first Viceroy.
- The title Viceroy emphasised representation of the Crown, especially in relations with princely states.
- The Secretary of State was accountable to British institutions, not to an Indian electorate.
- The Council of India was advisory and could be overridden in important matters.
- India initially financed the London-based apparatus through Indian revenues.
- Queen Victoria's Proclamation used conciliatory language concerning religion, public employment and princely treaties.
- Administrative accountability to Britain increased, but democratic accountability in India did not.

MEMORY HOOK

1858 ACT = INSTITUTIONS | 1858 PROCLAMATION = ASSURANCES

MUST-KNOW FACTS

1. The Act was called an Act for the Better Government of India.
2. Secretary of State was assisted by a 15-member Council of India.
3. Court of Directors and Board of Control were abolished.
4. Queen Victoria's Proclamation was announced on 1 November 1858.

UPSC TRAPS

- WRONG:** The office of Governor-General was abolished in 1858.
- CORRECT:** It continued, with Viceroy added as a Crown-representative title.
- WRONG:** The Act introduced representative government.
- CORRECT:** It centralised Crown administration.
- WRONG:** The Act and Queen's Proclamation were the same legal instrument.
- CORRECT:** The Act reorganised government; the Proclamation announced policy.

MAINS ANGLE

Distinguish accountability to an imperial Parliament from democratic accountability to the governed. The 1858 transfer improved the chain of command without transferring sovereignty to Indians.

STUDY LINK

Modern History -> Revolt of 1857 |
Governance -> Colonial bureaucracy

HIGH

5. Councils Acts 1861 and 1892

GS-II Polity -
Representative
Institutions

NEWS TRIGGER

Modern budget scrutiny, parliamentary questions, committees and indirect elections grew from incremental procedures that first appeared in a highly restricted colonial form.

INTRO & ORIGIN

The 1861 Act associated selected Indians with law-making and restored provincial legislative power. The 1892 Act enlarged councils, introduced a disguised indirect-electoral principle and allowed budget discussion and restricted questions.

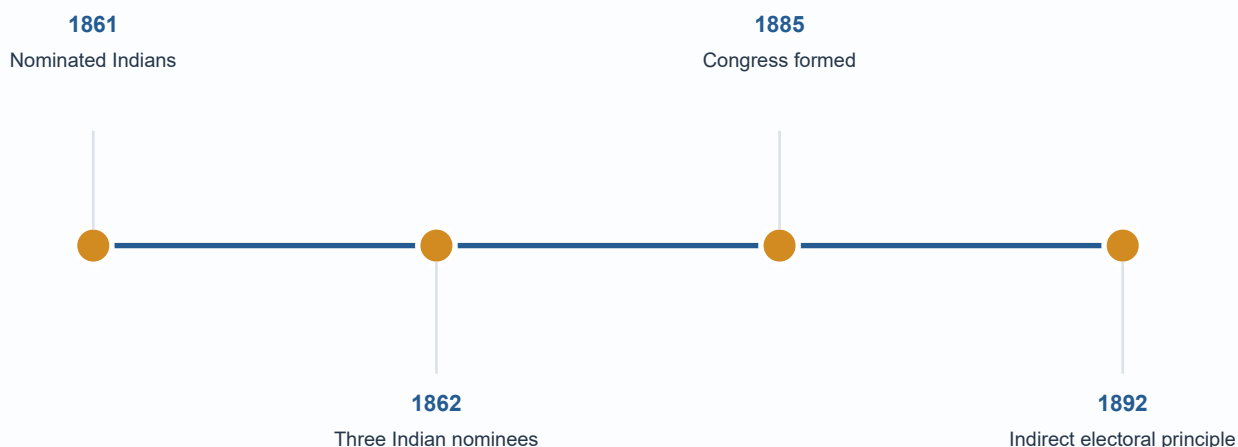
After 1857, Britain sought consultation and elite cooperation without conceding executive responsibility. Nationalist pressure after the formation of the Congress pushed the 1892 concessions further.

PARTICIPATION WITHOUT RESPONSIBLE GOVERNMENT

Legislative voice expands while executive control remains colonial

Nomination Selected elites enter councils in 1861.	Indirect representation Bodies recommend members in 1892.
Budget discussion Public finance becomes a subject of deliberation.	No removal power The executive remains unaccountable to councils.

REPRESENTATION BEGINS WITHOUT DEMOCRACY



KEY DATA

Dimension	1861 Act	1892 Act
Representation	Nominated non-official Indians	Recommendation by local bodies and associations
Legislation	Bombay and Madras regain powers	Central and provincial councils enlarged
Finance	No meaningful budget control	Budget may be discussed but not voted upon
Questions	Very restricted role	Questions permitted with procedural limits
Executive responsibility	Absent	Absent

STATIC THEORY

- The 1861 Act began associating Indians with legislation, but nominees were selected elites rather than popular representatives.
- It restored legislative authority to Bombay and Madras, partially reversing the centralisation of 1833.
- The portfolio system divided executive work departmentally but did not create cabinet responsibility.
- The Viceroy received a six-month emergency ordinance power.
- The 1892 Act avoided the word election while allowing municipalities, district boards, universities and chambers to recommend members.
- A non-official member was not necessarily elected or nationalist; the term only meant the person was not a serving official.
- Budget discussion without voting was an early but weak form of financial accountability.
- Questioning the executive began as an information mechanism rather than a basis of ministerial responsibility.

MEMORY HOOK

1861 = NOMINATION + DECENTRALISATION | 1892 = INDIRECT ELECTION + BUDGET DISCUSSION

MUST-KNOW FACTS

1. Lord Canning nominated the Raja of Benaras, Maharaja of Patiala and Sir Dinkar Rao in 1862.
2. The portfolio system was recognised under the 1861 framework.
3. The 1892 Act permitted budget discussion but not budget voting.
4. The electoral principle entered through recommendation followed by formal nomination.

UPSC TRAPS

WRONG: The 1861 Act introduced elections.

CORRECT: It introduced nominated Indian participation.

WRONG: The 1892 Act created direct elections.

CORRECT: It used an indirect recommendation system without expressly using the word election.

WRONG: Portfolio government meant a responsible cabinet.

CORRECT: It was only a departmental allocation of executive work.

MAINS ANGLE

Trace how modern parliamentary accountability evolved from limited colonial consultation, while stressing that debate and questioning are meaningful only when the executive is politically responsible.

STUDY LINK

Parliament -> Questions and Budget |

Federalism -> Legislative decentralisation

HIGH

6. Morley-Minto Reforms, 1909

GS-I / GS-II
Polity - Electoral
Representation

NEWS TRIGGER

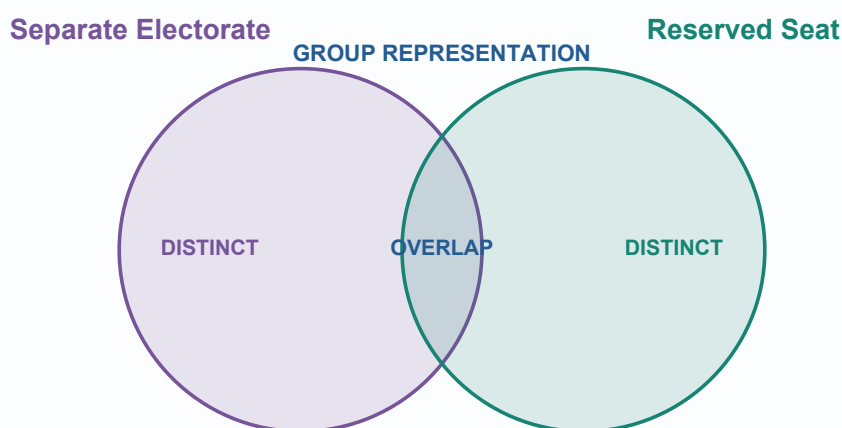
Contemporary debates on group representation remain constitutionally different from colonial separate electorates, because Article 325 mandates one general electoral roll.

INTRO & ORIGIN

The Indian Councils Act 1909 expanded legislative councils and deliberative powers, but its defining feature was the introduction of separate electorates for Muslims. It widened political participation while institutionalising communal identity.

The reforms responded to nationalist mobilisation, the Muslim League's emergence and British efforts to manage political demands through differentiated representation.

SEPARATE ELECTORATE AND RESERVED SEAT



Separate Electorate

- Community voters vote separately
- Colonial 1909 model
- Fragments electoral citizenship

GROUP REPRESENTATION

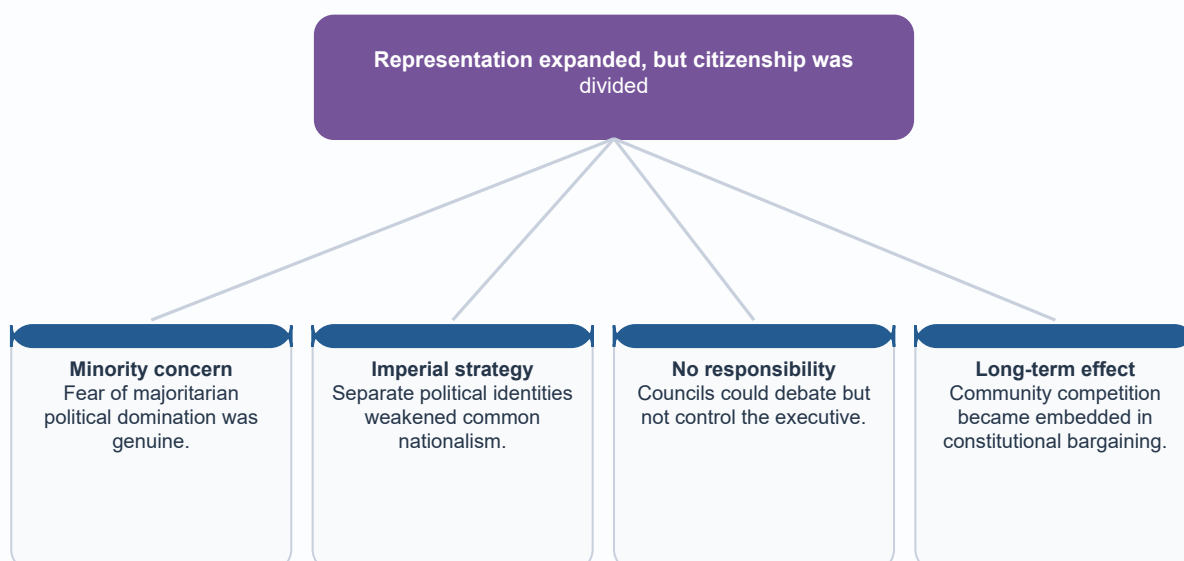
- Attempts to protect representation
- Candidate linked to a defined group

Reserved Seat

- All eligible voters participate
- Constitutional SC/ST model
- Common electoral roll retained

Reserved representation does not necessarily require separate community electorates.

THE CENTRAL CONTRADICTION OF 1909



KEY DATA

Feature	1909 position	Significance
Central Council	Strength enlarged; official majority retained	Debate grows without executive responsibility
Provincial Councils	Non-official majorities possible	Nominated and interest members still sustain control
Electorate	Separate electorate for Muslims	Communal identity becomes an electoral unit
Deliberation	Supplementaries and resolutions	Legislative voice expands
Executive inclusion	S.P. Sinha becomes Law Member	Symbolic Indianisation of the executive

STATIC THEORY

- John Morley was Secretary of State and Lord Minto II was Viceroy.
- Official majority was retained in the Central Legislative Council.
- Non-official majorities in provinces did not necessarily mean elected nationalist control.
- Separate electorates meant that Muslim voters elected Muslim representatives.
- Minto is described as the Father of Communal Electorate.
- Members gained supplementary questions and resolutions on budget and public matters.
- Satyendra Prasad Sinha became the first Indian member of the Viceroy's Executive Council.
- Morley expressly denied that the reforms aimed to create parliamentary government.

MEMORY HOOK

1909 = MORLEY-MINTO = MUSLIM SEPARATE ELECTORATE

MUST-KNOW FACTS

1. The Central Council expanded from 16 to 60.
2. S.P. Sinha served as Law Member.
3. Article 325 later rejected separate electoral rolls based only on religion, race, caste or sex.
4. SC/ST reserved seats under the Constitution operate through joint electorates.

UPSC TRAPS

WRONG: The 1909 Act introduced provincial dyarchy.

CORRECT: Dyarchy came with the 1919 Act.

WRONG: A non-official provincial majority meant an elected majority.

CORRECT: It could include nominated loyalists and interest representatives.

WRONG: Reserved constituencies are separate electorates.

CORRECT: All eligible constituency voters participate in reserved-seat elections.

MAINS ANGLE

Assess 1909 as a reform that increased participation but weakened the development of common territorial citizenship by converting religious identity into a formal electoral category.

STUDY LINK

Election Commission -> Article 325 | Society
-> Communalism

HIGH

7. Government of India Act, 1919

GS-II Polity -
Responsible
Government

NEWS TRIGGER

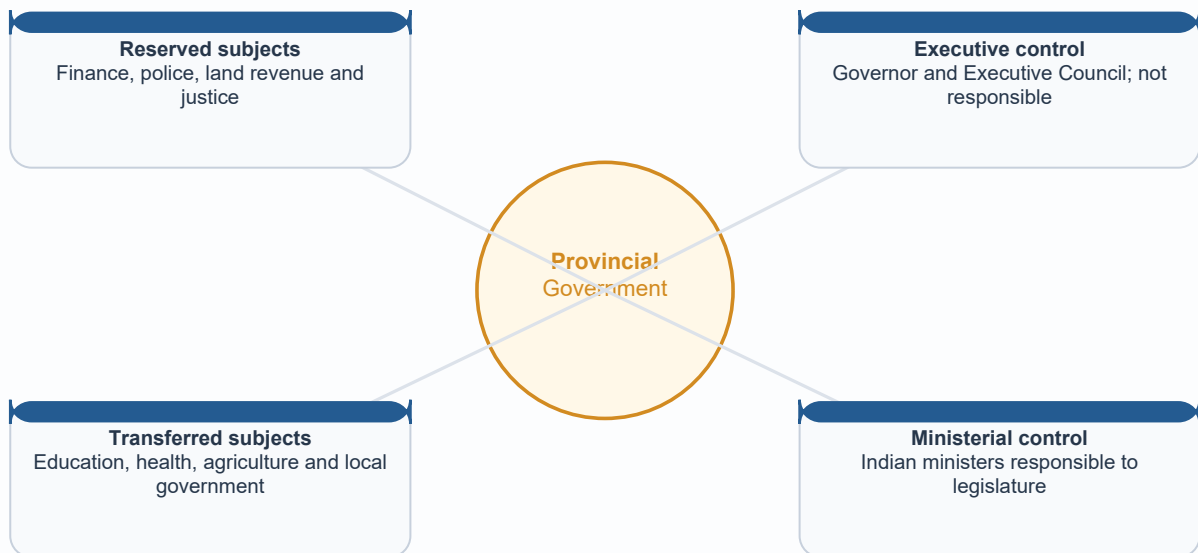
Current devolution debates reinforce the lesson of dyarchy: responsibility fails when functions, finances and administrative control are separated.

INTRO & ORIGIN

The Montagu-Chelmsford reforms divided central and provincial subjects, introduced dyarchy in provinces, created bicameralism at the Centre and expanded direct elections. They offered partial responsibility under continuing imperial control.

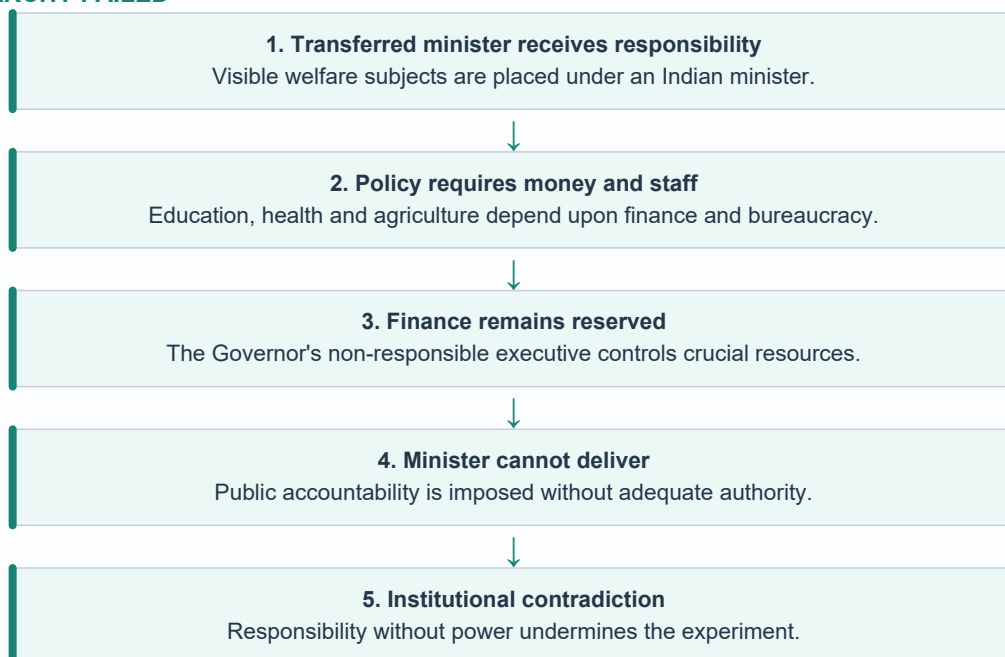
The 1917 Montagu Declaration promised progressive realisation of responsible government. The 1919 Act translated that promise into a limited and internally contradictory institutional experiment.

PROVINCIAL DYARCHY



KEY DATA

Dimension	Reform	Limitation
Provinces	Dyarchy and limited ministerial responsibility	Finance and coercive subjects remained reserved
Centre	Council of State and Legislative Assembly	Executive not responsible to legislature
Elections	Direct elections on a substantial scale	Property, tax and education franchise
Representation	Separate electorates extended	Common citizenship weakened
Administration	PSC and High Commissioner provided	Imperial safeguards remained decisive

WHY DYARCHY FAILED**STATIC THEORY**

- Provincial subjects were divided into reserved and transferred categories.
- Reserved subjects were administered by the Governor and Executive Council without legislative responsibility.
- Transferred subjects were administered by Indian ministers responsible to provincial councils.
- The Centre remained non-responsible despite bicameral legislative development.
- Direct election did not mean universal adult franchise.
- Separate electorates were extended to Sikhs, Christians, Anglo-Indians and Europeans.
- Provincial budgets were separated from the Central budget.
- The Act provided for a Public Service Commission, established centrally in 1926.
- The statutory-review clause produced the Simon Commission.

MEMORY HOOK

1919 = DYARCHY IN PROVINCES | BICAMERALISM AT CENTRE | DIRECT ELECTIONS

MUST-KNOW FACTS

1. The reforms came into force in 1921.
2. The two Central Houses were Council of State and Legislative Assembly.
3. Three of six Executive Council members, excluding the Commander-in-Chief, were to be Indian.
4. Simon Commission was appointed in 1927 under the review provision.

UPSC TRAPS

WRONG: The 1919 Act introduced provincial autonomy.

CORRECT: It introduced provincial dyarchy; autonomy came in 1935.

WRONG: Finance was a transferred subject.

CORRECT: Finance remained reserved.

WRONG: Bicameralism made the Central executive responsible.

CORRECT: The Viceroy's executive remained unaccountable to the legislature.

MAINS ANGLE

Use dyarchy to establish a general governance principle: accountability must be matched by authority over functions, finances and functionaries.

STUDY LINK

Local Governance -> 3F devolution |
Parliament -> Bicameralism

HIGH

8. Simon Commission to Poona Pact

GS-I / GS-II
Polity -
Constitutional
Negotiations

NEWS TRIGGER

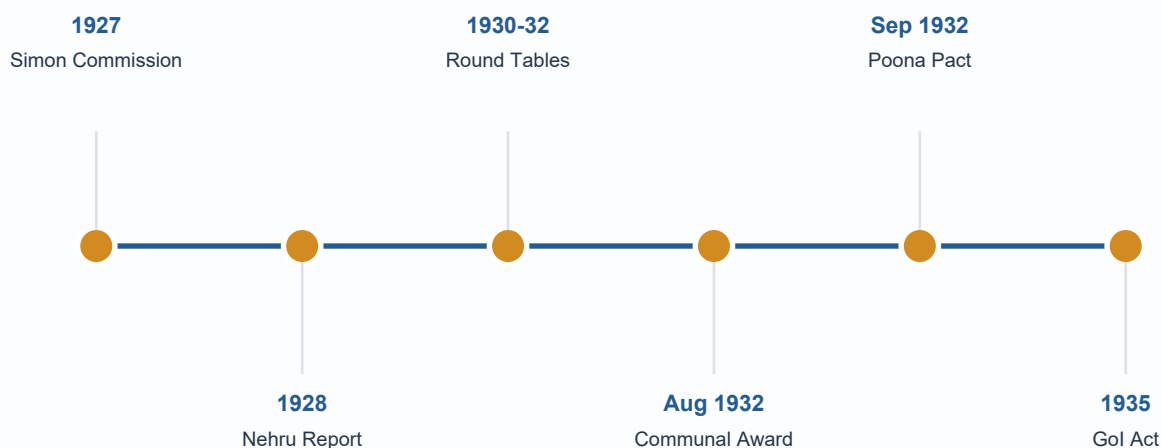
Debates on caste data, sub-classification and substantive political representation continue to raise the underlying 1932 question: how can disadvantaged groups secure an independent voice within a common polity?

INTRO & ORIGIN

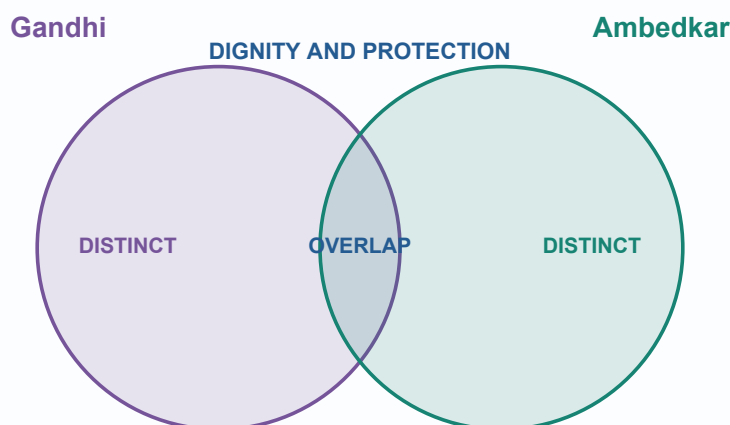
The road to the 1935 Act passed through the Simon Commission, Indian constitutional alternatives, three Round Table Conferences, the Communal Award and the Gandhi-Ambedkar compromise embodied in the Poona Pact.

This period moved constitutional debate from controlled British reform to competing Indian visions of federation, minority protection, responsible government and social representation.

CONSTITUTIONAL NEGOTIATION, 1927-1935



GANDHI AND AMBEDKAR ON REPRESENTATION



Gandhi

- Opposed separate Dalit electorate
- Feared permanent social division
- Favoured joint framework

DIGNITY AND PROTECTION

- Accepted need for safeguards
- Sought an end to oppression

Ambedkar

- Wanted independent political voice
- Distrusted dominant-caste selection
- Initially supported separate electorate

The dispute concerned the institutional method of representation, not whether injustice existed.

KEY DATA

Event	Core feature	Long-term significance
Simon Commission	All-British review; boycott	Provincial dyarchy recommended for abolition
Nehru Report	Dominion status, responsible government, joint electorates	Indian constitutional alternative
Round Table Conferences	Federation and minority bargaining	Inputs to White Paper and 1935 Act
Communal Award	Separate electorates extended to Depressed Classes	Representation crisis
Poona Pact	Joint electorate and increased reserved seats	Precursor to constitutional reserved-seat model

STATIC THEORY

- The Simon Commission had seven British members and no Indian member.
- It recommended abolition of provincial dyarchy and movement toward provincial responsible government.
- The Nehru Report was chaired by Motilal Nehru and proposed dominion status, rights and joint electorates.
- Congress attended only the Second Round Table Conference, represented by Gandhi.
- Ambedkar argued that socially dependent representatives might not provide substantive political representation.
- Ramsay MacDonald's Communal Award extended a separate electorate to the Depressed Classes.
- Gandhi's Yerawada fast opposed treating the Depressed Classes as a separate political community.
- The Poona Pact replaced the separate electorate with reserved seats in a joint electorate and increased provincial seats from 71 to 148.
- The modern Constitution retained joint electorates and reserved seats for SCs and STs.

MEMORY HOOK

SIMON -> NEHRU REPORT -> ROUND TABLES -> AWARD -> POONA PACT -> 1935 ACT

MUST-KNOW FACTS

1. Simon Commission was appointed in 1927.
2. Nehru Report was published in 1928.
3. Communal Award was announced on 16 August 1932.
4. Poona Pact was concluded on 24 September 1932.

UPSC TRAPS

WRONG: The Simon Commission recommended immediate complete independence.

CORRECT: It recommended constitutional reform including provincial responsibility, not immediate independence.

WRONG: Congress attended all Round Table Conferences.

CORRECT: It attended only the Second.

WRONG: The Poona Pact preserved separate electorates for Depressed Classes.

CORRECT: It substituted reserved seats within joint electorates.

MAINS ANGLE

Frame the Poona Pact as a tension between descriptive representation, substantive independence of representatives and integration within common citizenship.

STUDY LINK

Fundamental Rights -> Equality | Elections -> Reserved constituencies

HIGH

9. Government of India Act, 1935

 GS-II Polity -
Federal Blueprint

NEWS TRIGGER

Governor disputes, fiscal centralisation and legislative-list conflicts continue to reveal the importance of transforming the 1935 Act's centralised federal blueprint into genuine constitutional federalism.

INTRO & ORIGIN

With 321 sections and 10 schedules, the 1935 Act was the most elaborate colonial constitutional statute. It proposed an All-India Federation, introduced provincial autonomy, created three lists and provided key institutions.

Its architecture combined devolution with powerful safeguards. It distributed functions but retained imperial sovereignty in the Governor-General and Governors.

THE 1935 CONSTITUTIONAL BLUEPRINT

Federal form with an imperial controlling core



Federation Provinces compulsory; princely accession voluntary; never formed.	Provincial autonomy Responsible ministries operated from 1937.
Three lists Federal, Provincial and Concurrent legislative fields.	Safeguards Governor-General and Governors retained decisive discretion.

KEY DATA

Provision	Operated?	Key point
All-India Federation	No	Princely states did not accede in required numbers
Provincial autonomy	Yes	Ministries responsible to legislatures from 1937
Provincial dyarchy	No	Abolished
Central dyarchy	No	Proposed but dependent on federation
Federal Court	Yes	Established in 1937; Privy Council remained above it
Three lists	Yes as statutory framework	59 Federal, 54 Provincial, 36 Concurrent

STATIC THEORY

- The proposed federation required voluntary princely-state accession and therefore never commenced.
- Provincial autonomy abolished provincial dyarchy and enabled responsible ministries, but Governors retained broad safeguards.
- Congress ministries governed in several provinces from 1937 to 1939.
- Dyarchy was proposed at the Centre over reserved fields such as defence and external affairs, but never operated.
- Residuary subjects were allocated by the Governor-General.
- Six provinces received bicameral legislatures: Bengal, Bombay, Madras, Bihar, Assam and United Provinces.
- Franchise expanded to roughly one-tenth of the population but remained qualification-based.
- The Act supported Federal, Provincial and Joint Public Service Commissions.
- The Federal Court and RBI belong to this institutional era, though RBI was established under the RBI Act 1934.
- The Governor-General could veto, reserve, certify, issue ordinances and protect financial and imperial interests.

MEMORY HOOK

1935 = FEDERATION FAILED | PROVINCIAL AUTONOMY WORKED | CENTRAL DYARCHY FAILED

MUST-KNOW FACTS

1. The Act had 321 sections and 10 schedules.
2. Federal Court was established in 1937.
3. RBI began functioning in 1935.
4. The Act separated Burma and created Sindh as a province.

UPSC TRAPS

WRONG: The All-India Federation actually operated.

CORRECT: It never commenced.

WRONG: Residuary powers belonged to provinces.

CORRECT: The Governor-General allocated residuary subjects.

WRONG: Provincial autonomy eliminated gubernatorial discretion.

CORRECT: Governors retained special responsibilities and overriding powers.

WRONG: The Federal Court was the final appellate court.

CORRECT: The Privy Council remained the ultimate imperial appellate authority.

MAINS ANGLE

Argue that the Act supplied much of the administrative skeleton of the Constitution, but the republican Constitution replaced imperial safeguards with popular sovereignty, rights and judicial review.

STUDY LINK

Federalism -> Seventh Schedule | Governor | Supreme Court | Public Services

HIGH

10. Indian Independence Act, 1947

GS-I / GS-II
Polity - Transfer
of Sovereignty

NEWS TRIGGER

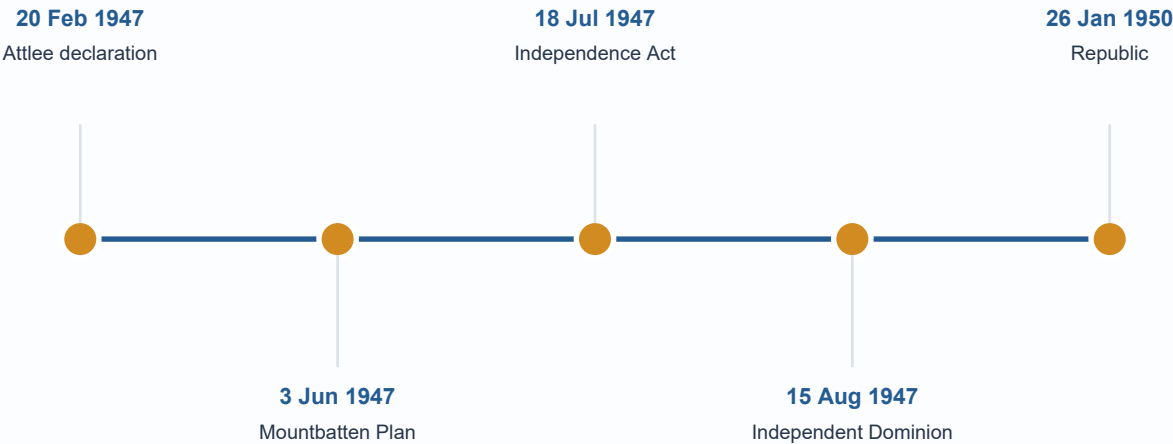
Federal debates still invoke the post-Partition need for integration, but the historical case for a strong Union must be balanced with mature State autonomy.

INTRO & ORIGIN

The Independence Act created India and Pakistan as independent Dominions, ended British legislative authority, abolished the Viceroyalty and Secretary of State, empowered the Constituent Assemblies and caused British paramountcy over princely states to lapse.

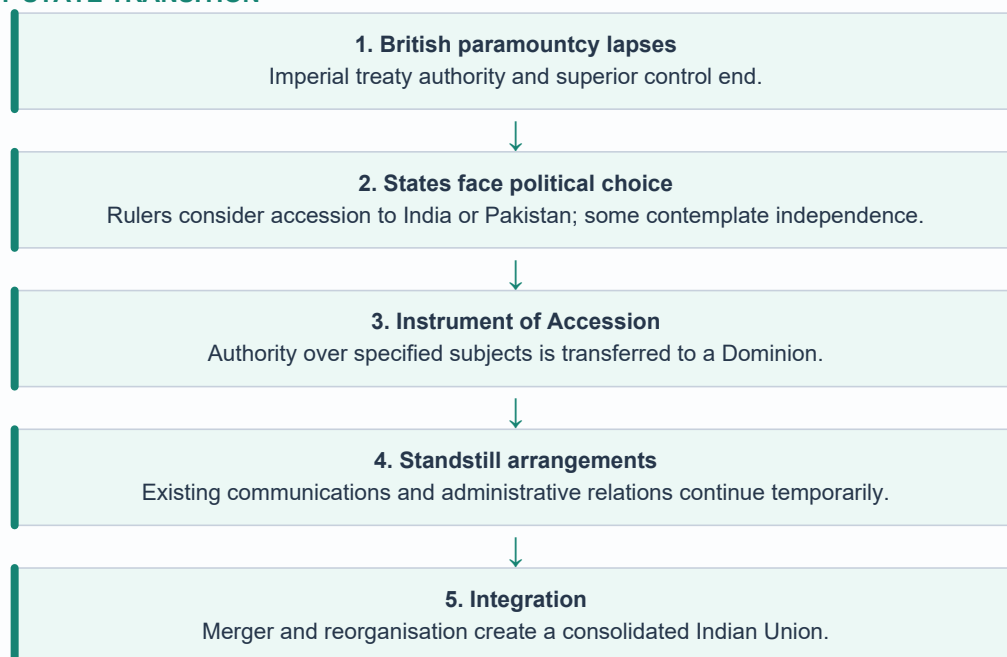
The Attlee Declaration and Mountbatten Plan accelerated the transfer. Independence solved the imperial-sovereignty question but left the urgent tasks of Partition management, state integration and constitution-making.

FROM TRANSFER PLAN TO REPUBLIC



KEY DATA

1947 position	1950 position	Constitutional change
Independent Dominion	Sovereign Republic	Monarch replaced by elected President
Governor-General	President	Dominion head becomes republican head
Adapted 1935 Act	Constitution of India	Interim legality replaced by indigenous supreme law
Constituent Assembly-legislature	Parliament	Temporary dual role ends
Paramountcy lapse	Integrated Union	Accession and merger consolidate territory

PRINCELY-STATE TRANSITION**STATIC THEORY**

- The Act was enacted by the British Parliament on 18 July and took effect on 15 August 1947.
- Dominion status did not mean continued British legislative supremacy; the Indian legislature became legally sovereign.
- India remained linked to the British monarch as formal head until becoming a republic in 1950.
- The Constituent Assembly could frame the Constitution, legislate and repeal British enactments.
- Dr Rajendra Prasad presided over constitution-making sittings; G.V. Mavalankar presided when the Assembly functioned legislatively.
- The office of Viceroy ended, while the Governor-General continued as a constitutional head.
- Lord Mountbatten was the first Governor-General of independent India; C. Rajagopalachari was the first Indian Governor-General.
- Paramountcy lapsed rather than automatically transferring to India.
- The adapted 1935 Act maintained institutional continuity until the Constitution commenced.
- Political independence, territorial integration and republican constitution-making were related but distinct processes.

MEMORY HOOK

1947 = INDEPENDENCE + DOMINION | 1950 = REPUBLIC

MUST-KNOW FACTS

1. Mountbatten Plan was announced on 3 June 1947.
2. British legislative authority ceased after independence.
3. The office of Secretary of State for India was abolished.
4. The title Emperor of India was discontinued.

UPSC TRAPS

WRONG: India became a republic on 15 August 1947.

CORRECT: India became an independent Dominion; republican status began on 26 January 1950.

WRONG: Princely states automatically became Indian provinces.

CORRECT: Accession and integration were required after paramountcy lapsed.

WRONG: The Constituent Assembly only drafted the Constitution.

CORRECT: It also functioned as the sovereign Dominion legislature.

MAINS ANGLE

Explain decolonisation as a process: legal independence, administrative continuity, princely-state integration and republican constitution-making occurred in successive but overlapping stages.

STUDY LINK

Union and Territory | Constituent Assembly | Federalism

HIGH**11. Integrated Constitutional Timeline****Prelims / GS-II**Polity - Master
Revision**NEWS TRIGGER**

Understanding institutional lineage helps evaluate whether contemporary practices represent legitimate continuity or the persistence of colonial control-oriented habits.

INTRO & ORIGIN

The complete sequence is easier to retain when organised around five evolving themes: executive centralisation, commercial exit, representation, responsible government and federal design.

UPSC frequently converts these themes into chronology, matching and statement questions. Conceptual grouping prevents the common error of memorising isolated dates without understanding institutional development.

FIVE EVOLUTIONARY TRACKS**Colonial constitutional development, 1773-1947**

Executive GG Bengal -> GG India -> Viceroy -> Dominion GG	Commerce Monopoly -> partial opening -> trade ends -> Company abolished
Representation Nomination -> indirect election -> direct election -> adult franchise	Responsibility Consultation -> dyarchy -> autonomy -> parliamentary government
Federalism Centralisation -> provincial subjects -> three lists -> constitutional federation	Sovereignty Company -> Crown -> Dominion -> People of India

KEY DATA

Year	Law / event	One-line recall
1773	Regulating Act	GG of Bengal and Supreme Court framework
1784	Pitt's India Act	Board of Control and dual control
1813	Charter Act	Indian trade monopoly partly ended
1833	Charter Act	GG India and complete end of trade
1853	Charter Act	Competition and legislative separation
1858	Gol Act	Company to Crown
1861	Councils Act	Nominated Indians and decentralisation
1892	Councils Act	Indirect election and budget discussion
1909	Councils Act	Separate electorate for Muslims
1919	Gol Act	Provincial dyarchy and central bicameralism
1935	Gol Act	Provincial autonomy and federal blueprint
1947	Independence Act	Sovereign Dominions and paramountcy lapse

STATIC THEORY

- Hastings, Bentinck and Canning mark the executive progression from Bengal to India to the Crown's Viceroy.
- The commercial progression is partial monopoly removal in 1813, complete trade termination in 1833 and end of government in 1858.
- The representation progression is nomination in 1861, indirect electoral principle in 1892, communal electorate in 1909 and direct elections in 1919.
- The responsibility progression is provincial dyarchy in 1919 and provincial autonomy in 1935.
- The federal progression is centralisation in 1833, legislative decentralisation in 1861, subject division in 1919 and three lists in 1935.
- The sovereignty progression ends only when authority shifts from Crown and British Parliament to the people under the Constitution.

MEMORY HOOK

HASTINGS-BENGAL | BENTINCK-INDIA | CANNING-VICEROY

MUST-KNOW FACTS

1. 1935 federation and central dyarchy never operated.
2. 1919 provincial dyarchy and 1935 provincial autonomy did operate.
3. The Constitution borrowed administrative structures but rejected imperial legitimacy.
4. Separate electorates were replaced by one general electoral roll with reserved seats.

UPSC TRAPS**WRONG:** 1909 introduced dyarchy.**CORRECT:** 1909 introduced separate electorates; dyarchy came in 1919.**WRONG:** 1935 federation operated before independence.**CORRECT:** Only the provincial part substantially operated.**WRONG:** India's Constitution is simply a copy of the 1935 Act.**CORRECT:** It adapted structures while transforming sovereignty, rights, franchise and responsibility.**INSTITUTIONAL LINEAGE INTO THE CONSTITUTION**

Colonial development	Constitutional institution	Transformation
Three lists	Seventh Schedule	Imperial allocation becomes constitutional federalism
Federal Court	Supreme Court	Privy Council removed; judicial review strengthened
Governor	State Governor	Imperial agent becomes constitutional head
Civil-service competition	UPSC / State PSCs	Merit combined with equality and representation
Budget discussion	Legislative financial control	Deliberation becomes binding authorisation
Limited franchise	Universal adult suffrage	Political privilege becomes equal citizenship

MAINS ANGLE

Use thematic evolution rather than an Act-by-Act catalogue. Show how executive, electoral, federal and judicial institutions changed in legitimacy and accountability.

STUDY LINK

Full Polity revision -> Salient Features, Federalism, Parliament, Judiciary

HIGH**12. UPSC Analysis and Answer-Writing Framework**

GS-II Mains
Polity - Answer
Writing

NEWS TRIGGER

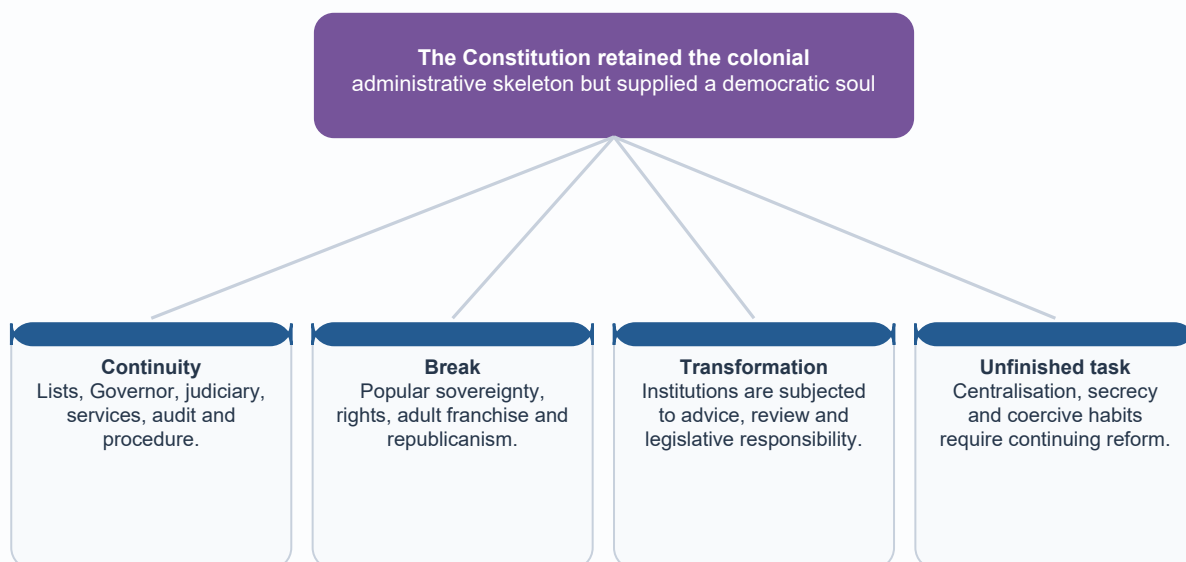
Decolonisation, Governor controversies, ordinance use, bureaucratic secrecy and federal tensions show why colonial institutional inheritance remains a live analytical theme.

INTRO & ORIGIN

UPSC rarely rewards a bare chronological list. A high-quality answer identifies the colonial institution, explains its original purpose, shows its constitutional transformation and evaluates whether control-oriented tendencies still survive.

The central thesis is continuity of administrative form combined with a decisive change in sovereignty, purpose and accountability.

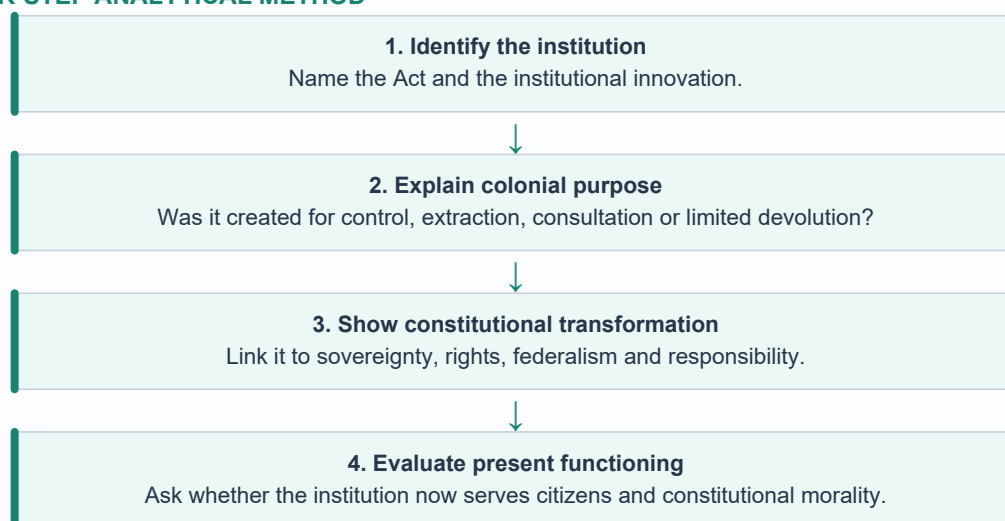
HOW TO ANSWER CONTINUITY-VERSUS-BREAK QUESTIONS



KEY DATA

Answer section	What to write	Illustrations
Introduction	Institutional continuity but transformation of legitimacy	1935 Act to Constitution
Continuity	Select five inherited structures	Lists, Governor, PSCs, court, ordinances
Decisive break	Explain democratic and rights-based changes	Adult franchise, FRs, republicanism
Critical layer	Identify surviving colonial tendencies	Centralisation, secrecy, coercion
Conclusion	Retention is judged by constitutional purpose	Subjects become citizens

THE FOUR-STEP ANALYTICAL METHOD



STATIC THEORY

- Continuities include the legislative-list structure, Governors, civil services, Public Service Commissions, judiciary, audit, bicameral procedure and ordinance powers.
- Decisive breaks include popular sovereignty, republicanism, universal franchise, Fundamental Rights, constitutional supremacy and judicial review.
- Administrative continuity was necessary to prevent institutional collapse during the transfer of power.
- A colonial origin does not automatically invalidate an institution; present constitutional purpose and safeguards are decisive.
- A good answer should neither call the Constitution a mere copy nor deny the scale of institutional inheritance.
- Contemporary examples should be used to illuminate constitutional principles, not replace historical evidence.

MEMORY HOOK

FORM CONTINUED | SOURCE, PURPOSE AND ACCOUNTABILITY TRANSFORMED

MUST-KNOW FACTS

1. The 1935 Act is the largest single administrative source of the Constitution.
2. Universal adult franchise was a radical break from colonial limited franchise.
3. The Constitution rejected communal electorates through the general-roll principle.
4. Judicial review and enforceable rights changed the relationship between state and citizen.

UPSC TRAPS

WRONG: Write every provision of every Act in a Mains answer.

CORRECT: Select only those developments relevant to the directive and thesis.

WRONG: Continuity means the Constitution lacks originality.

CORRECT: Institutional adaptation can coexist with a revolutionary change in legitimacy.

WRONG: Decolonisation means abolishing every inherited institution.

CORRECT: It means aligning institutions with liberty, equality, federalism and citizen accountability.

PROBABLE UPSC APPLICATIONS

Question theme	Core argument	Value addition
1935 Act and Constitution	Administrative continuity plus democratic transformation	Three lists, Governor, Federal Court
Evolution of representation	Concession becomes citizenship right	1861 to universal franchise
Federal development	Administrative decentralisation becomes constitutional power-sharing	1919, 1935 and Seventh Schedule
Communal representation	Protection without fragmented citizenship	1909, Poona Pact and Article 325
Colonial legacy	Judge institutions by constitutional function	Governors, ordinances, bureaucracy

MAINS ANGLE

Model thesis: India retained the administrative skeleton of the colonial state but replaced its imperial soul with popular sovereignty, responsible government, universal political equality and enforceable constitutional limitations.

STUDY LINK

Essay -> Decolonisation | GS-II -> Constitutional design and governance

End of Register Notes — UPSC Agent / Copilot CLI